

24STCV09038 24STCV09038

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-14

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Case Number: 24STCV09038 Hearing Date: July 14, 2026 Dept: 731

[TENTATIVE] ORDER RE: PETITIONS

FOR APPROVAL OF COMPROMISE OF CLAIM FOR MINORS

Background Facts

Plaintiffs sue Defendant Manual

Regalado pursuant to an April 10, 2026, Complaint alleging unhabitable rental conditions from Defendant, Plaintiff's landlord, resulting in injuries to Plaintiff, supporting seven causes of action.

On March 3, 2026, Plaintiffs filed a notice of settlement, noting a conditional settlement with an expected dismissal of June 1, 2026.

On March 24, 2026, Plaintiff Jose

Luis Galindo Vargas, as parent and guardian ad litem, filed petitions for approval of the settlement as relates to minor Plaintiffs, Brianna Iris Galindo Benitez, Kimberly Jasmine Galindo Benitez, and Ashley Galindo (for ease of reference hereafter referred to by first names; no disrespect is intended). The petitions were set for hearing on May 21, 2026.

On May 21, 2026, the Court denied the petitions without prejudice based on an errata filing by Plaintiffs on May 19, 2026.

That same day, Plaintiff Jose Luis

Galindo Vargas filed amended petitions for Brianna and Kimberly Galindo Benitez—though the record fails to reflect the same for Ashley Galindo.

The two amended minor Plaintiffs' petitions are now before the Court.

Petitions to Approve
Minors' Compromise

a.

Legal Standard on Petitions to Approve
Minors' Compromise

Under Code of Civil Procedure

section 372, any compromise of claim or action or disposition of proceeds of judgment made for a minor or adult with a disability must be approved by the Court. (See also Prob. Code § 3600, subd. (b) [a compromise or covenant for a disputed claim or damages, money, or other property of a minor or person who lacks legal capacity is valid only after it has been approved by the superior court].) A petition for court approval of a compromise of a minor or disabled adult's compromise or judgment of a pending action or proceeding to which this person is a party must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise, covenant, settlement, or disposition. (Cal. Rules of Court, rule 7.950; see also Cal. Rules of Court, rules 7.950.5-7.955.) The petition is generally submitted on a completed Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability (Judicial Council form MC-350). (Cal. Rules of Court, rule 7.950.) If the Court is satisfied that the compromise, covenant, settlement, or disposition is in the best interest of the person, then the Court should approve the same. (See *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1338.)

b. Discussion

A review of the petition shows that it meets all the requirements in California Rules of Court, rules 7.950 to 7.955. The record reflects that the amended petitions filed for Brianna and Kimberly:

(1) Are filed on verified Civil Form MC-350EX and contain a full disclosure of all information that bears upon

the reasonableness of the compromise, covenant, settlement, or disposition (see, e.g., Petitions at §§ 10, 11, 15, 16, 17, attachs. 11b.(5), 17a, 17e);

(2) Show none of the circumstances prohibiting expedited approval of these petitions (cf. Cal. Rules of Court, rule 7.950.5, subd. (a));

(3) Show the name, state bar number, law firm, and business address of the attorney (§ 17.b.), to-date compensation (§ 17.c.), insurer involvement (§ 17.d.), representation of other parties in this action (§ 17.e., attach. 17.e.), expected fees (§ 17.f., attach 11b.(5)), and representation terms (§ 17.a.(2), attach 17a.);

(4) Need not satisfy California Rules of Court, rule 7.952 as good cause exists to dispense with the need for their personal appearance or the personal appearance of their parent/guardian ad litem;

(5) Need not satisfy California Rules of Court, rule 7.953 as the Court has not ordered deposit of funds;

(6) Need not satisfy California Rules of Court, rule 7.954 as no withdrawal of funds are at issue; and

(7) Show reasonable fees charged to the minors here (§ 16 [roughly 24%]) (§ 16, attach 11b.(5)).

Moreover, nothing before the Court indicates that the settlement is not in the children's best interests, where the parents in the best position to use the remaining settlement proceeds to further the economic welfare and wellbeing of these minors. (Attach. 11b.(5).)

c. Conclusion

Plaintiffs' petitions are GRANTED.

Petitioner Jose Luis Galindo Vargas is ordered to give notice.

Parties who intend to submit

on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.